FRENCH & SMITH (PRIVATE) LIMITED
T/A CUSTOMS SERVICES
versus
INEBRIANT CACHE (PRIVATE) LIMITED
and
RONALD MABWE MUSONZA

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION
**MANZUNZU J**
HARARE, 25 February & 29 April 2026

**Summons Commencing Action**

*A.S Ndlovu*, for the plaintiff
*T Tembani,* for the 1st and 2nd defendants

**MANZUNZU J**

**INTRODUCTION**

(1) Before the close of the plaintiff's case, the plaintiff applied for leave to adduce further evidence in terms of Rule 23(2) of the High (Commercial Division) Rules, 2020 as read with Rule 56(11) of the High Court Rules, 2021. The application is opposed by the defendants.

**BACKGROUND**

(2) The plaintiff is French & Smith (Private) Limited t/a Customs Services, a company duly registered in accordance with Zimbabwe laws.
(3) The 1st defendant is Inebriant Cache a company duly registered in accordance with the laws of Zimbabwe.
(4) The 2nd defendant is a male adult who has the capacity to sue and be sued. He is the director of the 1st defendant and carries on the business of the 1st defendant.
The plaintiff's case is that;

(5) Sometime in March 2021, the 1st defendant orally gave the plaintiff a mandate to clear the 1st defendant's consignment of assorted liquor from South Africa to Zambia through Zimbabwe by road.

(6) The 1st defendant told the plaintiff that the goods were going to Zambia, the plaintiff then entered a removal in transit entry with the Zimbabwe Revenue Authority (ZIMRA). The plaintiff cleared the consignment as a removal in transit.

(7) It is alleged that after the goods had been cleared by the plaintiff into Zimbabwe for delivery in Zambia, the 1st defendant intercepted and re-directed the truck carrying the transit cargo to Harare.

(8) The entire consignment of liquor was off loaded at number 72 Plymouth Road, Southerton, Harare and 111 Nelson Mandela Way, Harare.

(9) When Zimra discovered the goods did not exit Zimbabwe within the three-day period allowed for a removal in transit, ZIMRA charged duty and taxes for the goods in the sum of US$118 831 and ZWL 3 242 650.23 and statutory penalty which amounted to US$ 118 831.77 and interest was also charged in the amount of US$ 58 227.57. These stated amounts were paid by the plaintiff.

(10) Upon discovering the fraud, the plaintiff made a Police report which resulted in the 2nd defendant's prosecution and conviction.

(11) The plaintiff suffered a disturbance in its business operations as there was a forfeiture of its bond with ZIMRA and suffered business losses due to the 1st and 2nd defendant's fraud.

(12) The plaintiff has made a demand from the defendants for payment of loss it incurred as a result of the defendant's fraudulent behaviour. Despite demand, the 1st and 2nd defendants have failed to make payment of the plaintiff's service charge, the amounts for import duty, the statutory penalties and interest on the same.

(13) The plaintiff after leading evidence from two witnesses applied for leave to adduce further evidence in terms of Rule 23(2) of the High (Commercial Division) Rules, 2020 as read with Rule 56(11) of the High Court Rules, 2021.

(14) The plaintiff states that during the trial, the name Shepard Kanungwa who was the truck driver who carried the consignment, repeatedly arose in both testimonies. The plaintiff states the evidence presented before the court contains an element of secondary narration of what the driver said and did.

(15) The plaintiff makes an application for supplementary evidence from Shepard Kanungwa which evidence will, in substance cover the following:

1. That he drove the truck transporting the liquor consignment from Musina to Harare;
2. That he was provided with irregular/ invalid documentation by an agent acting for the 1st and 2nd defendants and was told he would be contacted by the owner of the consignment;
3. That he and/or his employer were paid for the transportation;
4. That he was contacted by the 1st Defendant after crossing the border and was instructed to call again at the last tollgate of Harare;
5. That he was escorted from the tollgate to Harare to premises known as No. 72 Plymouth, and what occurred in relation to the consignment upon arrival;
6. What occurred to the containers used to transport the liquor; and
7. How he assisted the investigations that culminated in the arrest of the 1st defendant.

(16) The defendants oppose this application on the grounds that:

1. The plaintiff has failed to provide a satisfactory explanation for the delay in seeking to adduce this evidence;
2. The application constitutes an improper attempt to panel beat the plaintiff's case after observing the insufficiency of evidence already led;
3. The application relates to the position of the 2nd defendant, with no explanation provided regarding the 1st defendant;
4. The defendants will suffer substantial and irremediable prejudice if application is granted.

- This court must determine whether or not the plaintiff should be allowed to adduce supplementary evidence.

**THE LAW**

(17) Rule 23 (2) of the High Court (Commercial Division) Rules, 2020 states:

> "All trial actions other than as may be directed by the presiding judge, shall be conducted in terms of the High Court Rules."

Rule 56(11) of the High Court Rules state that:

> "In case of any doubt, or dispute arising, the court shall have discretion to determine which party shall begin. Either party may, with the leave of the court, adduce further evidence at any time before the judgment but such leave shall not be granted if it appears that such evidence was intentionally withheld out of its proper order."

(18) In *Bendezi Sugar Farm (Pvt) Ltd* v *Mhene Estates (Pvt) Ltd* 1995(1) ZLR 135(S) the Supreme Court stated as follows:

> "The principles upon which this court allows the adduction of further evidence were set out in *Border Syndicate (Pvt) Ltd* 1961 R & N 28(FS). They have been applied many times since, most recently in *Beval Trading (Pvt) Ltd* v *Voest-Alpine Intertrading GMBH* S-149-94 (not reported). There are four criteria:
>
> 1. The evidence must not with reasonable diligence have been obtainable for use at the trial;
>
> 2. The evidence must be such as is presumably to be believed or is apparently credible;
>
> 3. The evidence must be such as would probably have an important influence on the result of the case, although it need not be decisive;
>
> 4. Conditions since the trial must not have so changed that the fresh evidence will prejudice the opposite party."

(19) The court in *Chitengwa* v *Manase* SC55-06 noted one of the requirements of adducing supplementary evidence. It stated that:

> "That is not enough. The Rules require that the evidence be filed in the form of an affidavit and not just be alleged to be in existence.
>
> In *S* v *De Jager 1965* (2) SA 612 it was stated, among other requirements, that there should be a prima facie likelihood of the truth of the evidence, and the evidence should be materially relevant to the outcome of the trial."

(20) The court in *United Refineries Limited* v *The Mining Industry Pension Fund & Ors* SC63-14 stated that evidence that raises wholly fresh issues is prejudicial. It stated that

> "There can be no doubt that in the circumstances of this case the adduction of new evidence would have caused prejudice to the respondent which could not be cured by an order of costs no matter how punitive such costs would have been. A court would not exercise its discretion for the filing of a further affidavit where the affidavits sought to be filed do not constitute a reply but raise wholly fresh issues, thus entailing the filing of further affidavits by the applicant."

(21) In *Anueyiangu* v *Chief Immigration Officer & Ors* SC15-23 the court noted that the court has the discretion to admit a supplementary affidavit. It stated that:

> "One must be alive to the fact that the court had a discretion to admit the supplementary affidavit in question. The court in the exercise of its discretion admitted the supplementary affidavit. The fact that there was no strict compliance with r 235 was really not that important for the reason that in terms of r 4C a court or judge is allowed to condone any departure from any provision of the Rules."

**ANALYSIS**

(22) The main reason why the plaintiff makes an application to adduce supplementary evidence is because during trial, the name Shephard Kahungwa who was the truck driver who carried the consignment repeatedly arose in both testimonies. The plaintiff states the evidence presented before the court contains an element of secondary narration of what the driver said and did.

From *Anueyiangu supra* cited above, the court has the discretion on whether or not it should admit supplementary evidence. The court does not see how it will be prejudicial to the defendants if the plaintiff adduced supplementary evidence since the truck drivers name appeared in both testimonies. The evidence being brought will not be fresh and it is materially necessary relevant to the outcome of the trial.

**DISPOSITION**

1. The application by the plaintiff for leave to adduce further evidence succeeds.

2. The plaintiff shall pay the defendants' costs of this application.

**MANZUNZU J**…….

*Anesu Bryan & David* – plaintiff's legal practitioners.
*Tembani Gomo Law Practice* – defendant's legal practitioners.